



POLICE DEPARTMENT

March 11, 2019

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2017-17346
Police Officer Malcolm Hart	:	
Tax Registry No. 948044	:	
Housing Borough Manhattan	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Daniel Maurer, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Roger Blank, Esq.
387 Park Avenue South, 5th Floor
New York, NY 10016

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Said Police Officer Malcolm Hart, while assigned to Manhattan Court Section, and while off-duty, on or about and between September 14, 2016 and September 15, 2016, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: while in the confines of New York County, operated his vehicle on the Henry Hudson Parkway, a 50 mph zone, at a rate of speed in excess of 80 mph and switched lanes in an erratic manner. *(As amended)*

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT – PROHIBITED
CONDUCT
VEHICLE AND TRAFFIC LAW 1180 (a)
& (2)

2. Said Police Officer Malcolm Hart, while assigned to Manhattan Court Section, and while off-duty, on or about and between September 14, 2016 and September 15, 2016, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: while driving his vehicle on the Henry Hudson Parkway in New York County, failed to stop when ordered to do so by on-duty Police Officer Ronald Jurain, Tax #937631, assigned to Highway 1. *(Dismissed)*

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT – PROHIBITED
CONDUCT

3. Said Police Officer Malcolm Hart, while assigned to Manhattan Court Section, and while off-duty, on or about and between September 14, 2016 and September 15, 2016, was discourteous to New York City Police Officer Ronald Jurain, Tax #937631, assigned to Highway 1, in that said officer referred to Police Officer Jurain as a "dickhead." *(As amended)*

P.G. 203-09, Page 1, Paragraph 2 PUBLIC CONTACT – GENERAL

4. Said Police Officer Malcolm Hart, while assigned to Manhattan Court Section, and while off-duty, on or about and between September 14, 2016 and September 15, 2016, and while the subject of a vehicle stop, did fail and neglect to remove his Department identification card from his wallet and provide it to on-duty New York City Police Officer Ronald Jurain, Tax #937631, assigned to Highway 1, as requested. *(As amended)*

P.G. 221-20, Page 2, Paragraph 7 CONFRONTATION SITUATIONS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on February 5, 2019.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The

Department called Police Officer Ronald Jurain of Highway 1 and Sergeant Christopher Held of

Highway 3 as its witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

Having reviewed all of the evidence in this matter, I find Respondent Guilty, and recommend that Respondent be suspended thirty (30) days without pay, forfeit thirty (30) vacation days, and be placed on one-year dismissal probation.

ANALYSIS

Respondent faces three charges¹ stemming from an incident that occurred when he was driving to work in his personal vehicle on the evening of September 14, 2016. It is alleged: first, that Respondent was speeding erratically in excess of 80 mph; second, that he failed to hand his Department identification card to the Highway Patrol Officer who pulled him over; and third, that he was discourteous to that officer, referring to him as a "dickhead."

Officer Ronald Jurain of Highway 1 testified that he was positioned on the shoulder of the Henry Hudson Parkway in Manhattan, monitoring passing vehicles for speeding. The posted speed limit for that portion of the parkway was 50 mph. At approximately 2238 hours, Officer Jurain observed Respondent driving southbound at an excessive rate of speed; the stationary radar indicated that Respondent was traveling 90 mph. Officer Jurain merged onto the parkway with the intention of initiating a stop of Respondent's vehicle. (Tr. 16, 18, 74)

According to Officer Jurain, he had to drive in excess of 100 mph to catch up to Respondent, who continued to speed down the parkway, occasionally changing lanes. After about three quarters of a mile, Officer Jurain was able to pull behind Respondent, and signaled

¹ During the course of the trial, Specification 2, charging Respondent with failing to stop when ordered to do so, was dismissed on the motion of the Department Advocate because it was unsupported by the evidence presented. (Tr. 78, 81)

for Respondent to pull over. Respondent promptly moved to the right and exited the parkway at the 158th Street exit. (Tr. 19-20, 43)

Officer Jurain testified that he approached Respondent's vehicle and observed an NYPD plaque on the dashboard. Respondent identified himself as a member of the service, and had his wallet in his lap, containing what appeared to be a Department identification card. Officer Jurain repeatedly asked Respondent to hand him the card, but Respondent failed to comply. Even though he believed Respondent to be an MOS, Officer Jurain informed Respondent that he needed to look more closely at the identification card to verify he was an officer. Officer Jurain explained to Respondent that if he didn't comply, then a supervisor would be summoned to the location. As Officer Jurain turned to go back to his RMP to call a supervisor, Respondent called him a "dickhead," though Officer Jurain did not take offense at the remark. Officer Jurain acknowledged that at times he raised his voice during his interaction with Respondent, and that he was not always courteous to Respondent. (Tr. 23-28, 49-52, 65)

Respondent was not issued a summons for his driving. Officer Jurain did not produce any records showing the radar reading for Respondent's vehicle. (Tr. 36, 72, 86)

Sergeant Christopher Held of Highway 3 testified that when he arrived on the scene, Respondent immediately complied with his request to hand over his identification card. Sergeant Held described Respondent as cooperative and respectful during their interaction. Respondent did mention to the sergeant that he was concerned that Officer Jurain would throw his identification card into the bushes; Sergeant Held testified that such practice was merely an "old-wives' tale," stemming from the 1970's when it was possible that such conduct actually occurred, but that it did not happen in the modern era. (Tr. 85, 90, 93-95, 101-02)

Video footage from the camera in Officer Jurain's RMP showed most of his pursuit of Respondent, as well as their interaction after the stop (Dept. Ex. 1). Part one of the video begins

at 22:38:22, after Officer Jurain has merged onto the parkway. As the RMP proceeds southbound, Respondent's vehicle appears up ahead, speeding in and out of traffic. At 22:39:06, the RMP is close behind Respondent's vehicle, signaling him to pull over. Respondent promptly pulls into the exit lane and exits the highway. Both cars come to a stop, and Respondent places his car keys on the roof of his vehicle.

The audio comes on at 22:39:56, as Officer Jurain approaches Respondent's vehicle on foot and asks Respondent where he is going; Respondent answers that he is going to court. Officer Jurain asks, "Why the fuck didn't you stop for me?" Before Respondent can answer, Officer Jurain repeatedly yells at Respondent to take out his ID, and explains that he needs to make sure it's not fake. At 22:40:39, Respondent suggests that he run a check on the car, but Officer Jurain replies that he is not going to do that, and again insists on seeing the identification card. Officer Jurain asks Respondent if he wants a boss to come to the scene. When Respondent asks why he is yelling at him, Officer Jurain replies that he has a right to yell because Respondent was driving 90 mph. At 22:42:12, Respondent tells Officer Jurain that he would not have caught him if he was trying to run. Officer Jurain gives Respondent a final opportunity to take out his ID card, and Respondent asks why Officer Jurain seems to be taking it personally. At 22:44:06, Respondent raises his voice and tells Officer Jurain to go ahead and call the supervisor so he can know that Officer Jurain is a "dickhead."

The second portion of the video captures the interaction between Sergeant Held and Respondent, where Respondent willingly hands his identification card to the sergeant.

Respondent testified that he was driving to work at the Manhattan Court Section [REDACTED] [REDACTED]. His tour was scheduled to begin at 2300 hours, but he denied he was in a rush. Respondent claimed he did not recall how fast he was going, but doubted he was driving

over 80 mph. When Respondent saw the flashing lights of the police car behind him, he signaled to the right and pulled over. (Tr. 107-08, 111, 118-19)

According to Respondent, who was alone in his vehicle, Officer Jurain was "highly aggressive" with him during their interaction, using a curse word and yelling at Respondent. This behavior led Respondent to fear that Officer Jurain had an "ulterior motive" in requesting his identification card; he feared that the officer would take the ID and throw it, since he heard that had happened to other MOS. Respondent refused to hand his identification card to Officer Jurain, though he noted that the card was visible in the open wallet resting on his lap, and that he also had a police parking plaque visible through the car window. Respondent denied directly calling Officer Jurain a "dickhead," explaining that what he said was that if Officer Jurain calls a sergeant, that supervisor will call him a dickhead. When Sergeant Held did arrive, Respondent handed over his identification card, and explained to the sergeant why he had been reluctant to do so earlier. Respondent also testified that he did not believe that the patrol guide section requiring an MOS to hand over his identification card applied to this particular situation. (Tr. 109-15, 119, 123, 127-28)

Specification 1 charges Respondent with driving in excess of 80 mph in a 50 mph zone, and switching lanes in an erratic manner. Respondent testified that he did not recall how fast he was driving, but doubted that he exceeded 80 mph. Counsel for Respondent noted that Officer Jurain did not issue a speeding summons to Respondent, and did not produce a record of the radar reading.

However, Officer Jurain did testify in a consistent and logical fashion that he observed Respondent driving in the manner alleged, and the video footage supports his testimony. I credit Officer Jurain's testimony that he clocked Respondent's vehicle at 90 mph, and that he, himself, had to drive in excess of 100 mph in order to catch up. Additionally, on the video footage of the

car stop interaction, Officer Jurain can be heard repeatedly stating to Respondent that he was driving 90 mph; those statements, just moments after Officer Jurain had observed Respondent driving, sound genuine, not fabricated. The credible evidence has established that Respondent drove in a manner prejudicial to the good order and discipline of the Department, and I find him guilty of Specification 1.

As indicated above, Specification 2, charging Respondent with failing to stop when ordered to do so by Officer Jurain, was dismissed on the motion of the Department Advocate after the testimony of Officer Jurain.

Specification 4 charges Respondent with failing to remove his Department identification card from his wallet and hand it to Officer Jurain as requested. Section 221-20 of the Patrol Guide deals with "Confrontation Situations" between members of the service, both on and off duty. Paragraph 7 instructs a confronted officer to produce his identification card to a challenging officer. If requested to do so, the officer will "remove identification card from wallet, holder, etc. and hand it to the challenging officer."

Here, Officer Jurain, the "challenging officer," repeatedly requested that Respondent, the "confronted officer," hand him his identification card. Those requests were repeated multiple times in an unambiguous manner. Nevertheless, Respondent refused to comply with that request, until Sergeant Held arrived about 40 minutes later.

Contrary to Respondent's testimony, the requirements of section 221-20 do apply in this situation, and Respondent's conduct ran afoul of those requirements. Similarly unavailing is Respondent's contention that he feared that Officer Jurain would toss his identification card; this assertion was nothing more than rank speculation, and did not provide a justification for Respondent's failure to hand his card to Officer Jurain.

This tribunal is mindful that Officer Jurain had reason to believe that Respondent was a police officer, based on the (expired) parking plaque, the officers' conversation, and the Department identification card that was visible in Respondent's wallet. Nevertheless, Officer Jurain still was obligated to verify that Respondent was, in fact, a member of the service. Respondent failed to comply with the request to hand his card to Officer Jurain, and I find him guilty of Specification 4.

Specification 3 charges Respondent with being discourteous to Officer Jurain in that he referred to him as a "dickhead." It is undisputed that Respondent did use the term "dickhead" near the conclusion of his conversation with Officer Jurain; the only uncertainty is the precise phrase spoken by Respondent. Officer Jurain testified that Respondent said, "You're being a dickhead." Respondent testified that he told Respondent that if he called the sergeant, the sergeant would call him a "dickhead." It is unclear from the video footage what exactly was said, but it sounds like Respondent states, "Do me a favor and just call him, so he can know that you're a dickhead."

Regardless of the precise words used, it was discourteous for Respondent to address Officer Jurain in that manner. Even if Officer Jurain did not take offense, it was disrespectful for Respondent to speak to him in that way. This tribunal is mindful that Officer Jurain, himself, was frequently confrontational with Respondent during their exchange. Nevertheless, that does not excuse Respondent from acting in a courteous manner toward an on-duty officer. The credible evidence has established that Respondent was discourteous to Officer Jurain, and I find him guilty of Specification 3.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on January 14, 2009. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has been found guilty of three specifications, while a fourth charge, for failing to obey an order to pull over, has been dismissed. The Department Advocate recommends that Respondent be dismissed from the Department. However, even taking into account Respondent's disciplinary record, under the circumstances of this case that recommendation is excessive.

Standing alone, the guilty findings in this case would warrant a loss of vacation days. See, e.g. *Disciplinary Case No. 2011-3504* (Dec. 10, 2012) (six-year police officer with no disciplinary record forfeited thirty (30) vacation days for, while off-duty, failing to provide her Department identification and exit her vehicle upon the request of an on-duty MOS; that officer also was discourteous, directing profanities toward the on-duty MOS); *Disciplinary Case No. 2013-9520* (Nov. 20, 2015) (eleven-year police officer with no disciplinary record forfeited thirty (30) vacation days for, while off-duty, interfering with a police investigation, during which she refused to comply with a request by on-duty officers to present her identification, and failed to remain outside her vehicle as instructed; that officer also yelled profanities at the on-duty officers).

There is, however, an aggravating factor in this case: Respondent's disciplinary record. In *Disciplinary Case Nos. 2015-14565 and 2016-15245* (July 13, 2017), Respondent forfeited thirty-two (32) suspension days previously served, an additional thirteen (13) vacation days, and was placed on one-year dismissal probation, for multiple offenses contained in those two

matters. Specifically, in the first case, Respondent, while off-duty, operated his personal vehicle in a reckless manner, including driving at a high rate of speed, and refused orders to stop and pull over. On another date, he drove through a steady red light. Additionally, Respondent operated a motorcycle without a valid motorcycle license. In the second case, Respondent's whereabouts after a court appearance were unknown, and when he was confronted about his absence he attempted to engage an on-duty lieutenant in a physical altercation. Respondent pled guilty to many of the counts in those two cases. It is important to keep in mind that the probationary penalty in those cases was not imposed until after the incident in the present matter had already occurred.

With the guilty findings in this case, taken in conjunction with his recent disciplinary history, Respondent's career with the Department is at a crossroads. Respondent has again demonstrated a flagrant disregard for public safety, and again dealt inappropriately with a fellow member of the service who was performing his duties. A period of monitoring is essential. This will impose upon Respondent the added burden of comporting with Department guidelines under threat of dismissal. Because this is not Respondent's first time behaving in this manner, I am recommending the forfeiture of a significant number of days as well. Taking into account the circumstances and issues in this matter, including Respondent's disciplinary record, I recommend that Respondent be suspended thirty (30) days without pay, forfeit thirty (30) vacation days, for a total of sixty (60) penalty days, and that Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one (1) year pursuant to Section 14-115(d) of the Administrative Code, during which time he

remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

JUN 13 2019



JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER MALCOLM HART
TAX REGISTRY NO. 948044
DISCIPLINARY CASE NO. 2017-17346

Respondent was appointed to the Department on January 14, 2009. On his last three annual performance evaluations, he twice received 3.5 overall ratings of "Highly Competent/Competent" for 2014 and 2016, and received a 3.0 rating of "Competent" for 2015.

[REDACTED]

In 2017, Respondent forfeited thirty-two (32) suspension days, thirteen (13) vacation days and was placed on one-year dismissal probation for misconduct that was the subject of two disciplinary cases. In the first matter, Respondent was found Guilty of (i) attempting to engage a lieutenant in a physical altercation and (ii) failing to answer the lieutenant's questions about his whereabouts; he also pled Guilty to neglecting to notify his command when he was dismissed from a court appearance and failing to return to the command for three hours. In the second case, Respondent pled Guilty to (i) operating his personal vehicle in a reckless manner, driving at a high rate of speed through several steady red lights and stop signs, (ii) disregarding multiple orders from an officer to stop and pull over, (iii) on a separate occasion, recklessly driving through a steady red light, (iv) reporting late for duty on four (4) occasions, (v) failing, on a separate occasion, to notify his command that he was running late for duty, and (vi) operating a motorcycle without the requisite license.

In connection with those charges, Respondent was placed on Level 1 Discipline Monitoring on June 30, 2016. That monitoring continued until July 13, 2017 when he was placed on dismissal probation.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials